



Prysmian – Atkore

MN-01124

Phase 1 Determination

Acquisition may be put into effect

29 September 2026

1. Determination and statement of reasons

Notified acquisition	Prysmian S.p.A.'s (Prysmian) proposed acquisition of 100% of the share capital in Atkore Inc. (Atkore).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Prysmian, is listed on the Italian Stock Exchange and headquartered in Milan. In Australia, Prysmian has two local manufacturing facilities in Dee Why and Liverpool, New South Wales that produce fibre optic cables and energy cables, respectively. Prysmian supplies cables and wires to telecommunications companies, power utilities, electrical wholesalers and contractors, original equipment manufacturers, and mining facilities throughout Australia. The target, Atkore, is a Delaware corporation listed on the New York Stock Exchange and headquartered in Illinois. Atkore manufactures and supplies electrical and safety infrastructure solutions for construction and infrastructure projects, including conduits, cable management systems (trays, ladders and baskets) and safety infrastructure products (barbed tape, mechanical tubing, metal pipe supports and bollards). Atkore's products are sold to end-consumers in Australia by a range of electrical and industrial distributors.
Supply chain relationship between the Parties	There is no overlap in Australia between Atkore's activities and the activities of Prysmian and its connected entities. Prysmian is focussed on manufacturing and selling cables whereas Atkore is focussed on manufacturing cable management accessories and systems to ensure cables are safely distributed.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, responses from third-parties and publicly available information on product offerings of both parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC finds that there is no actual or potential horizontal overlap between the products supplied by Prysmian (cables) and Atkore (cable management systems and accessories) in Australia.

Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**